

25STCV27954A 25STCV27954A

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Case Number: 25STCV27954A Hearing Date: August 12, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 12, 2026

CASE NUMBER

25STCV27954A

MOTION

Demurrer to First Amended Complaint

MOVING PARTIES

Defendants Mr.

Chow Enterprises, Ltd., Ricardo Amorim, and Carlos Martinez

OPPOSING PARTY

Plaintiff Elsy Marzillier

MOTION

Plaintiff Elsy

Marzillier ("Plaintiff") brought this action against Defendants Mr. Chow Enterprises, Ltd. ("Mr. Chow"), Ricardo Amorim, ("Amorim"), and Carlos Martinez ("Martinez," collectively, "Defendants") alleging wrongful termination. Amorim demurs to the second cause of action and Mr. Chow demurs to the eighth cause of action in Plaintiff's first amended complaint. Plaintiff opposes the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Second Cause of Action: Hostile Work
Environment Harassment

To state a claim

for harassment based on a hostile work environment, Plaintiff must allege severe or pervasive harassment unreasonably interfering with work performance. (Thompson v. City of Monrovia (2010) 186 Cal.App.4th 860, 877.)

In the instant

case, Plaintiff alleges Martinez and another co-worker subjected Plaintiff to pervasive harassment. (See, e.g., First Amended Complaint, ¶¶ 13, 16, 19.) Plaintiff also alleges Amorim "[o]n at least three occasions, . . . intentionally brushed his hand against Plaintiff's buttocks and breasts" and made sexual comments to Plaintiff. (Id., ¶ 18.) For pleading purposes, Plaintiff's allegations suffice against Amorim.

Defendants argue the

sham pleading doctrine bars Plaintiff's allegations against Amorim. "Under the sham pleading doctrine, allegations in an original pleading that rendered it vulnerable to demurrer or other attack cannot simply be omitted without explanation." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 751.) Plaintiff did not omit

allegations she included in the original complaint. Instead, Plaintiff added new allegations against Amorim. Such amendment is permissible.

Therefore, Amorim's demurrer to the second cause of action is overruled.

Eighth Cause of Action: Intentional Infliction of Emotional Distress, or IIED

"The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. The defendant must have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result." (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001, internal quotations and citations omitted.)

As set forth above, Plaintiff alleges Martinez and Amorim engaged in conduct which constituted harassment, and such conduct was extreme and outrageous. However, Plaintiff fails to allege conduct by Mr. Chow, an entity, which was extreme and outrageous. "A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged. If personnel management decisions are improperly motivated, the remedy is a suit against the employer for discrimination." (Janken v. GM Hughes Electronics (1996) 46 Cal.App.4th 55, 80.) Plaintiff cannot base a claim for IIED on personnel decisions. Plaintiff must allege extreme and outrageous conduct by Mr. Chow beyond personnel decisions.

Plaintiff cites Light v. Department of Parks & Recreation (2017) 14 Cal.App.5th 75 (Light), which is not on point. In that case, the Court considered the sufficiency of the plaintiff's claims of IIED against two coworkers, not against their employer.

(See id., at pp. 101-102.)

As such, Light does not support Plaintiff's contention she has adequately alleged IIED against Mr. Chow.

The Court has already provided Plaintiff with one opportunity to amend the complaint to support the eighth cause of action against Mr. Chow. Plaintiff failed to do so. However, in an abundance of caution, the Court will provide Plaintiff with another opportunity to amend. (See City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747 [further amendment permitted when operative complaint "does not on its face foreclose any reasonable possibility of amendment"].)

CONCLUSION AND ORDER

Mr. Chow's demurrer to the eighth cause of action is sustained with leave to amend. The demurrer is otherwise overruled.

Plaintiff is to file an amended complaint within 20 days of notice of this order.

Defendants are ordered to provide notice of the Court's ruling and to file proof of service of same.